

		<u>Motion to Strike</u> Apple Defendants argue the punitive damages claim should be stricken due to lack of specificity. Because the Court has held that the fraudulent concealment cause of action is allowed to stand, the Motion to Strike punitive damages is DENIED. However, Apple Defendants are correct that Plaintiff has not identified any basis for his claim for attorney fees and Plaintiff has not addressed this deficiency in his opposition. Thus, the Motion to Strike the claim for attorney fees is GRANTED with 20 days leave to amend. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
103	Andrews vs. Thompson, 23-01211689	<i>Off-calendar.</i>
104	Lee vs. Kingsbury, 25-01472404	<i>Off-calendar.</i>
105	Simmons vs. Alter Domus, Inc., 24-01445636	<u>Motion to Compel Deposition</u> Defendants Alter Domus, Inc. and Chris San (collectively "Defendants") move the Court for an order compelling Plaintiff Nancy Simmons ("Simmons" or "Plaintiff") to attend an oral deposition. Defendants seek an order awarding monetary sanctions against Plaintiff in the total amount of \$10,272.05 for attorneys' fees and costs (including costs of court reporters). Here, Plaintiff admits that her deposition has been scheduled three times and she has not appeared. However, she asks for leniency due to family circumstances involving becoming the caretaker of her son who was in an accident. To that end, lead counsel to appear to meet and confer as to available dates for Plaintiff's deposition. Plaintiff to pay \$2,001.05 for the Court Reporter's costs.